

Year 11 Semester Two Examination, 2023

Question/Answer Booklet

POLITICS AND LAW

MKEY

Structure of this paper

Section	Number of questions available	Number of questions to be answered	Suggested working time (minutes)	Marks available out of 80	Percentage of exam
Section One: Short Answer	4	3	55	30	37.5%
Section Two: Source Analysis	2	1	40	20	25%
Section Three: Essay	2	1	55	30	37.5%
					100%

General Observations

- Not attempting questions: You should ALWAYS have a go; Never leave an answer blank
- Not filling up all the lines: You simply haven't written enough content
- An example must ALWAYS be given to illustrate your understanding
- Use the language from the question
- Style your answer according to the question (e.g. use of capital letters)
- Spelling: You cannot be spelling words in the question wrong; nor simply/basic PAL words e.g. Parliament
- Handwriting: If it cannot be read, it cannot be marked. It is that simple
- Cross out notes
- Misreading questions – this happened a lot/across all sections of the paper
- Just answer the question. Avoid superfluous information. E.g. No intro needed for Qa/b
- Essay's need work – students not evaluating properly or being far too vague

Question 1

(10 marks)

(a) Define the term constitutional monarchy.

(2 marks)

Description	Marks
Define the term constitutional monarchy.	2
Makes a general statement about the term constitutional monarchy.	1
Total	2
Elements: - Any country in which a monarch (King or Queen) is the highest authority in relation to a constitution = Head of State Hereditary position - Head of State must act in accordance with the constitution and be limited by the provisions of the constitution Constitution can be written or unwritten (constitutional conventions) - Example: AUS = Head of State is the Queen represented by the GG	
Accept other relevant answers.	

(b) Distinguish between representative government and responsible government. (3 marks)

Description	Marks
Distinguishes between representative government and responsible government.	3
Outlines the terms representative and responsible government.	2
Makes a general statement about representative and responsible government.	1
Total	3
Answer could include, but are not limited to: - Representative government is a form of government in which the people are sovereign, but are represented in government by elected members of an assembly (parliament) acting as their representatives. Such representatives may be delegates, trustees or partisans. - Responsible government is the convention governing the formation of government in the Westminster system in which the executive is drawn from and responsible to the parliament. - A key point of difference is that responsible government is a convention (i.e. unwritten rules outlining how the political system should operate) while representative government describes the physical structure of the government (outlined in various pieces of legislation).	
Accept other relevant answers.	

- (c) Discuss **one** advantage and **one** disadvantage of the operation of Australian federalism since Federation.

(5 marks)

Description	Marks
Discusses one advantage and one limitation of the operation of Australian federalism since Federation.	5
Outlines one advantage and one limitation of the operation of Australian federalism since Federation. Or Discusses one advantage or one limitation of the operation of Australian federalism since Federation.	3-4
States one advantage and/or one limitation of the operation of Australian federalism since Federation.	1-2
Total	5
Advantages include: • Lawmaking powers are allocated to the Commonwealth and the States which the constitution lists as exclusive, concurrent and residual powers. • Sovereignty is divided geographically between a national government in Canberra and states with their own regional governments. This allows for variation in public policy across the country instead of a universal approach. • The Senate provides equal representation for States. • The High Court of Australia is empowered to strike down legislation by either level of government that transgresses the division of powers. • Section 128 of the Constitution requires approval from a majority of voters in a majority of the States in a referendum. Only 8 of 44 attempts at amendment have been approved. • Cooperation between the different levels of government has been more evident in recent years due to crises like COVID-19. States have also reasserted themselves over the national government, for example through education and border closures. Limitations include: • The change in the federal balance has not been static. The shift from a coordinate model to a more coercive model has been evident in financial arrangements and High Court decisions. • The Commonwealth collects more tax than it requires for its own purpose and the States have expenditure needs far in excess of their tax revenue. The result is a high degree of vertical fiscal imbalance. • The States have retained most of their original responsibilities, but the Commonwealth now plays a role in almost all of those areas. This high degree of overlap has resulted most importantly from the financial purse of the Commonwealth and the ability that gives the Commonwealth to provide conditional grants to the States. • The Senate as a popularly elected chamber operates as a contest between the political parties, rather than a 'house of the States'.	

Question 2**(10 marks)**

- (a) Outline the purpose of the 'second reading' stage of the legislative process.

(2 marks)

Description	Marks
Outlines the purpose of the 'second reading' stage of the legislative process.	2
Makes a general statement about the purpose of the 'second reading' stage of the legislative process.	1
Total	2
The purpose of the 'second reading' stage of the legislative process is: - During the 'second reading' stage of the legislative process a bill is read a second time, a speech is made by the MP or minister introducing the bill, it is then debated and voted upon. - The purpose of this stage is to 'test' the bill to ensure that it will fulfil the purpose for which it was first introduced, to scrutinise the wording and to debate the need for the proposed law. - The 2nd Reading is where the minister responsible for the introduction of the Bill explains to the House its importance, relevance, costing. Following this, other members from all parties in the House can 'speak to the bill', this is where comments are made as to the feasibility of the bill, how it will impact on human rights, how much it will cost to implement, etc. A vote is taken at the end of this stage, if the bill fails at this vote, it will progress no further. - The second stage of a bill enables the representatives of the people to scrutinise the bill to ensure that it is fit for purpose. Accept other relevant answers.	

- (b) Distinguish between residual powers and concurrent powers.

(3 marks)

Description	Marks
Distinguishes between residual powers and concurrent powers and provides relevant examples.	3
Defines residual powers and concurrent powers and provides relevant examples.	2
Makes a general statement about residual powers and concurrent powers.	1
Total	3
- Residual powers - Before Federation, each colony had its own set of powers. At Federation some of those powers were handed over to the Commonwealth (s. 51). The remaining powers stayed with the states (s. 108); they are called the residual powers and only the states can make laws based on these powers - Concurrent powers - powers that can be exercised by both the states and the Commonwealth. Contained in section 51 for example, trade and commerce with other countries and taxation - Distinguishing feature – concurrent powers are written within the Constitution and residual powers are not	

- (c) Discuss **one** argument for and **one** argument against the proposition that 'the legislative process in Australia is dominated by the executive'. (5 marks)

Description	Marks
Discusses one argument for and one argument against the proposition 'that the legislative process in Australia is dominated by the executive'. Makes reference to two examples in the discussion.	5
Outlines one argument for and one argument against the proposition 'that the legislative process in Australia is dominated by the executive'. Makes reference to two examples. or Discusses one argument for and one argument against the proposition 'that the legislative process in Australia is dominated by the executive'. Makes reference to one example in the discussion.	3-4
Discusses one argument for and one argument against the proposition 'that the legislative process in Australia is dominated by the executive' making no reference to examples. or Makes a general statement about how the legislative process in Australia is dominated by the executive.	1-2
Total	5
Answers could include, but are not limited to: - The legislative process refers to the passage of a bill (proposed law) through both Houses of parliament which if passed in identical form can then be passed to the Governor-General for Royal Assent whereupon it becomes law and is published in the Government Gazette. Arguments for the proposition: - Over 90% of bills proposed in the Commonwealth Parliament are introduced by the Government. - The majority of bills which pass through the Commonwealth Parliament are non-controversial and pass through both houses without dissent. - More often than not the Government hold a majority of seats in the lower house which means that they are able to use tactics such as gags, guillotines and floodgating in order to push through legislation in the lower house. - Section 53 of the Constitution states that both houses of the Commonwealth Parliament have the right to introduce any legislation other than money bills which must be introduced in the HoR which is dominated by the Government. Arguments against the proposition: - The Commonwealth Parliament (and majority of state/territory governments) consist of two Houses through which bills must pass prior to becoming a law. This enables the Senate to act as a 'House of Review' and a 'check' on the power of the government. - Increasing numbers of independents/minor parties in the HoR and the Senate means that in recent years governments have had to negotiate with the cross benches in order to pass government legislation e.g. The Morrison led Lib/NP Government were forced to negotiate with Jacqui Lambie (JLN) was able to negotiate with the Morrison led Lib/NP Government for the passage of Stage 3 Tax Cuts which were a central plank of the Coalitions platform in the leadup to the 2019 election. In return Lambie was able to gain \$157m worth of concessions removing public housing debt for the Tasmanian Government. 2022 – negotiations required between ALP Government and Greens and David Pocock (Ind) to secure passage of Climate Change legislation (43% target a 'floor not a ceiling'). Accept other relevant answers.	

Question 3**(10 marks)**(a) Outline **two** features of fair elections that are upheld in Australia.

(2 marks)

Description	Marks
Outlines two features of fair elections that are upheld in Australia.	2
Outlines one feature of fair elections that are upheld in Australia. Or Makes a general statement about fair elections in Australia.	1
Total	2
Features of fair elections include: • Universal suffrage - all Australian citizens older than 18 years of age are eligible to vote. • anyone who is eligible to vote in Australia may also run as a candidate; • electors must not be intimidated or pressured when voting - eg secret ballot in Australia • electors' voting power must be equal; • nominations for candidates should be as open as possible, maximising political participation for citizens and political parties; • political parties must be treated equally; • a majority of votes must result in a majority of seats. Majority rule is a fundamental democratic principle; • the rights of minorities must be respected. Political rights and freedoms are fundamental liberal principles.	
Accept other relevant answers.	

(b) Explain **one** potential impact of a recently implemented reform to the electoral and voting systems in Australia.

(3 marks)

Description	Marks
Explains one impact of a recently implemented reform to either the West Australian or Australian electoral system.	3
Outlines one impact of a recently implemented reform to either the West Australian or Australian electoral system.	2
Makes a general statement about a recently implemented reform to either the West Australian or Australian electoral system.	1
Total	3
One recently implemented reform includes the change to group voting tickets at the federal level. This involved: • Group voting tickets (GVT) are used in most upper house elections in Australia. It is a list of candidates that is submitted by a party to the Electoral Commission before an election. Voters then have the option of voting for a single party 'above the line' on the ballot paper. If they choose this option, their votes will then be distributed according to that party's group voting ticket. • GVTs can mean that voters are unaware of how their preferences will flow, because parties negotiate with each other about how they will allocate their preferences to each other. This has meant that minor and micro-parties with low community support have been elected to parliament almost exclusively on the preferences of other parties, e.g. 2014-16 Ricky Muir from the Motoring Enthusiasts Party was elected to the Senate on 0.51% of first preferences. • In 2016 the Senate voting system was reformed just before the federal election, requiring voters to number at least 6 group voting tickets above the line. • The reforms to the ballot paper for the Senate have meant that voters have more control over their preference flows if voting above the line.	

• The reforms also allowed voters to choose a minimum of 12 candidates below the line, rather than numbering every single box. This meant that preferences would not always continue to flow to every single candidate, which makes it less likely that micro-party candidates will be elected, and less likely that 'preference harvesting' will be successful. This allows voters to vote for candidates they know, rather than having to number every candidate on the ballot, which can amount to > 80 names. • The reform also introduced the use of Party Logos on the ballot papers.
Note – answer must address the impact on the electoral system being discussed.

(c) Discuss the advantages and disadvantages of using majoritarian electoral systems.

Description	Marks
Discusses the advantages and disadvantages of using majoritarian electoral systems	5
Outlines the advantages and disadvantages of using majoritarian electoral systems	3-4
Makes a general statement about the advantages and disadvantages of using majoritarian electoral systems	1-2
Total	5
Answers could include, but are not limited to: • First Past the Post • Preferential Advantages • Strong relationship between elected parliamentarians and the people they represent • MPs are more likely to be accessible to their constituents and to be responsive to their interests and concerns • Role of parliament = represent public – be a voice (delegate, trustee) – knowing who your electorate representative is to help this • Single member electorates create clear parliamentary majorities and stable government Disadvantages • Unfair to minority groups, they are unrepresented • Less diversity - As only one person is elected per seat, parties feel they need to select the 'most broadly acceptable' candidate (less likely to choose candidates from a racial or ethnic minority as they feel they are less likely to attract the level of support required to win an individual seat). Historically also reducing number of women elected under single member electorate systems. • Vote Wastage – in many electorates a party may win very large majorities, over 50% of the vote i.e. ALP achieve 75% in industrial towns, this surplus would have been more valuable if it were more evenly spread geographically, it was a 'wasted majority' • Manipulation – open to this as it may allow unpopular governments to stay in power by biasing the electoral system against opponents – gerrymandering and malapportionment	
Accept other relevant answers.	

Question 4**(10 marks)**

(a) What is meant by the term 'natural justice'?

(2 marks)

Description	Marks
Explains what is meant by the term natural justice.	2
Makes a general statement about what is meant by the term natural justice.	1
Total	2
Answers could include information such as this: - Natural justice is a principle of justice incorporating the rule against bias and the right to a fair hearing. This is also known as 'due process'. - This implies that all people have the right to be heard by an independent arbiter and that evidence must be used as the basis for any decision. - Courts and tribunals also have a duty to act fairly. Accept other relevant answers.	

(b) Distinguish between the standard of proof and burden of proof required in an adversarial trial. (3 marks)

Description	Marks
Differentiates between the standard of proof and burden of proof required in an adversarial trial.	3
Outlines one difference and states another on the standard of proof and burden of proof required in an adversarial trial.	2
Makes a general statement about the standard of proof and burden of proof required in an adversarial trial.	1
Total	3
Answers could include but not limited to: - The standard of proof in an adversarial trial refers to the level to which a court case must be proven in order for it to be successful. In a civil trial the standard is 'on the balance of probabilities' and in a criminal trial it is 'beyond reasonable doubt'. - The burden of proof refers to the party which is responsible for proving their case. In a civil trial this is usually borne by the party who brings the case (the plaintiff) while in a criminal case the burden of proof rests on the state (the prosecution). - A key difference is that the burden of proof refers to the party responsible for demonstrating the legitimacy of their argument while the standard of proof is the extent to which the argument must proven before a court may find in the favour of either party. Accept other relevant answers.	

- (c) Assess the arguments for and against using a jury in the criminal justice system.
(5 marks)

Description	Marks
Assesses the arguments for and against using a jury in the criminal justice system.	5
Outlines the arguments for and against using a jury in the criminal justice system.	3-4
Discusses the arguments for and against using a jury in the criminal justice system.	1-2
Total	5
Answers could include, but are not limited to: A jury is a panel of citizens who judge the facts of a case. They hear evidence and argument presented by the parties to a case and are directed by a judge. They decide the verdict. Arguments for juries: ○ The judge is better able to decide on credibility ○ The jury is not required to give a reason for its verdict ○ Trial by jury is costly and time-consuming ○ Complex and technical evidence ○ Influenced by emotional bias/automatic bias or swayed by rhetoric ○ Perverse verdicts ○ Trial by media ○ Horrific cases can affect jurors – harrowing evidence ○ Inconsistent ○ Majority verdicts can convict when there is doubt which should have been given – which may result in a miscarriage of justice ○ Unanimous verdicts ○ Jury acquittal rates Arguments against juries: ○ Independent of political interference and inflexible legalistic attitudes ○ Helps democratize the court ○ Has more flexibility than a judge or professional tribunal ○ A safeguard of freedom – civic duty ○ Represents the view of the ordinary person / Trial by peers ○ A forum to assess the justice system – builds belief in the legal process ○ Ensures that the accused is treated fairly ○ Jurors take their role seriously ○ Jury system has stood the test of time ○ A means of providing access and education ○ Ensures the law remains intelligible to the ordinary person ○ Selection allows for a cross-section of the community ○ Decision-making is spread across a number of people ○ Majority verdicts allow justice when there is a 'rogue' juror ○ Juries consist of anonymous men and women ○ Many judges believe jurors usually return the right verdict; test evidence well ○ Public acceptability of jury decisions	
Accept other relevant answers.	

Question 5**(20 marks)**

Read **Source 1** and answer all parts of the question that follows.

The following is an edited extract entitled *The Supreme Court has overturned precedent dozens of times* written by David Shultz and published by The Conversation on June 30, 2022.

The United States Supreme Court rarely overturns its past decisions or precedents.

From 1789 to 2020, there were 25,544 Supreme Court opinions and judgments after oral arguments. The court has reversed its own constitutional precedents only 145 times – barely 0.5%.

The court's historic periods are often characterized by who led it as chief justice. From 1953 until 2020, under the successive leadership of Chief Justices Earl Warren, Warren Burger, William Rehnquist and now John Roberts, the court overturned constitutional precedent 32, 32, 30 and 15 times, respectively. That is well under 1% of decisions handled during each period in the court's history.

For most of its history, the court changed its mind only when it thought past precedent was unworkable or no longer viable, perhaps eroded by its subsequent opinions or by changing social conditions. In some cases, reversal happened when the court simply thought it got it wrong in the past.

Not all precedents are equal, and several current Supreme Court justices have in the past been open to overturning even long-standing rulings that interpret the Constitution.

Beginning with the Rehnquist court, justices became more willing to reject precedents they thought were badly reasoned, simply wrong or inconsistent with their own sense of the constitutional framers' intentions. Justice Clarence Thomas has taken this position on abortion. Justice Amy Coney Barrett, during her Senate confirmation hearing, argued that Roe is not a so-called superprecedent, a decision so important or foundational that it cannot be overturned.

Roberts has been willing to overturn settled law when he thinks the original opinion was not well argued. He did so in *Citizens United*, a 2010 decision overturning two major campaign finance decisions, *Austin v. Michigan Chamber of Commerce* from 1989 and part of the 2003 *McConnell v. FEC* decision.

Question 5

- (a) What is meant by the term precedent? (2 marks)

Description	Marks
Explains the term precedent.	2
Makes a general statement about the term precedent.	1
Total	2
Precedent is: • A judge made decision that stands as an example or guide for future decisions in cases of similar factual circumstances. • There are binding precedents that apply to all courts lower in the hierarchy than where the precedent was set. • There are persuasive precedents that a court may refer to when making a decision. These can be from courts outside of this court hierarchy or even internationally. • Precedent is based on 'stare decisis' – <i>to stand by what has been decided</i>. Accept other relevant answers.	

- (b) With reference to **Source 1** explain, in your own words, **two** reasons why the US Supreme Court may choose to overturn past decisions or precedents.

(4 marks)

Description	Marks
Identifies two reasons why the US Supreme Court may choose to overturn past decisions or precedents. Explains each reason in the candidate's own words, with direct reference to the source.	4
Identifies two reasons why the US Supreme Court may choose to overturn past decisions or precedents. Explains one reason and outlines another reason. Answer is mostly in the candidate's own words, with some reference to the source	3
Identifies two reasons why the US Supreme Court may choose to overturn past decisions or precedents or Identifies and explains, in the candidate's own words, one reason why the US Supreme Court may choose to overturn past decisions or precedents	2
One or two reasons are cited verbatim from the source	1
Total	4
Reasons why the US Supreme Court may choose to overturn past decisions or precedents might include: For most of its history, the court changed its mind only when it thought past precedent was unworkable or no longer viable, perhaps eroded by its subsequent opinions or by changing social conditions. In some cases, reversal happened when the court simply thought it got it wrong in the past. • Beginning with the Rehnquist court, justices became more willing to reject precedents they thought were badly reasoned, simply wrong or inconsistent with their own sense of the constitutional framers' intentions. • Roberts has been willing to overturn settled law when he thinks the original opinion was not well argued. He did so in <i>Citizens United</i>, a 2010 decision overturning two major campaign finance decisions, <i>Austin v. Michigan Chamber of Commerce</i> from 1989 and part of the 2003 <i>McConnell v. FEC</i> decision. Note: Reasons must be drawn from the source.	

Question 5 (continued)

- (c) Discuss the influence of the Westminster system of government and American federal system on the Australian political system.

(6 marks)

Description	Marks
Discusses the influence of the Westminster system of government and American federal system on the Australian political system	5 - 6
Outlines the influence of the Westminster system of government and American federal system on the Australian political system	3 - 4
Makes a general statement about influence of the Westminster system of government and American federal system on the Australian political system	1 - 2
Answers could include but not limited to: - AUS institutions and practices reflect British and US models but are uniquely Australian - Westminster system - Responsible parliamentary government - Separation of powers: Executive is formed by the party with majority seats in the lower house (house of the people). Executive must sit in Legislative branch - Bicameralism - Constitutional monarchy - English common law - Washington model - AUS founding fathers borrowed extensively from the US Constitution (written) - Independently governed states working together under a central federal government structure - AUS colonies didn't want to relinquish power - Sovereignty is shared and powers divided between two levels of government (Dual Federalism) - Federal division of powers (s.51; 90; 115 etc.) - Senate = states house - Enshrines the idea of indirect democracy (representative democracy) - Referendum process with regards to majority of voters in a majority of states - AUS High Court mirrors US Supreme Court = ability to interpret the Constitution/Constitutional court	

Question 5 (continued)

- (d) Referring to case examples, discuss how precedent can be changed or avoided. (8 marks)

Description	Marks
Defines 'precedent'. Discusses how precedent can be changed in the Australian legal system. Refers to specific court decisions in detail.	7-8
Outlines 'precedent'. Discusses how precedent can be changed in the Australian legal system. Refers to specific court decisions.	5-6
Outlines 'precedent'. Explains how precedent can be changed in the Australian legal system. Refers to one court decision.	3-4
Makes general statements about precedent in the Australian legal system	1-2
Total	8
Answers could include, but are not limited to: • Precedent: A judge made decision that stands as an example or guide for future decisions in cases of similar factual circumstances. They can be 'binding' or 'persuasive'. • Precedents can be changed through: ▪ overruling previous legal principles, e.g. <i>Mabo 1992</i> – Eddie Mabo seeking to claim his father's land on the island of Mer in the Torres Straits. The Qld Government said there was no such land claim. He appealed all the way to the HCA who eventually overturned the legal precedent of 'terra nullius' meaning 'vacant land' and created the new legal principle/precedent of 'native title'. This then allowed indigenous peoples to claim land that they could prove they had a continuous spiritual or physical connection with. ▪ distinguishing a case from previous cases, e.g. <i>Donoghue v Stevenson 1932</i> – [UK - House of Lords] Donoghue had been out to a café for a drink, her friend purchased her a ginger beer in an opaque bottle, she drank some from the bottle, then poured some onto her ice cream. Upon doing this, a decomposed snail poured out of the contents. This made Donoghue sick, she took the manufacturer (Stevenson) to court. The judge found in favour of Donoghue creating the 'neighbor principle' which led to the tort of negligence. Lord Atkin applied a new rule of law to this case: "The duty of care". ▪ through the interpretation of the Constitution, e.g. <i>Commonwealth of Australia & Anor v. State of Tasmania & Ors (1983)</i>, The Franklin Dam Case, often referred to as the 'Dams Case'. In this case the HCA had to interpret the words 'external affairs' in s51(xxix) of the Constitution. The Tasmanian government wanted to build a hydro-electricity station on the Gordon below Franklin river, this would provide much needed jobs and a source of power. The Commonwealth government didn't wish for this to go ahead and so signed a treaty where it could nominate lands as 'World Heritage' listed. The Commonwealth Parliament was, therefore, able to pass a law that stopped the damming of the Franklin River in Tasmania because the area was covered by an international convention. The HCA interpreted s51(xxix), to mean, that if the Commonwealth signed a treaty on 'anything', this would give it the power to legislate on that 'anything', this virtually gave the Commonwealth the power to sign treaties just so it could legislate in areas that might be residual powers of the states. ▪ reversing precedent. The result of a higher court substituting its <i>ratio</i> in place of a lower court's <i>ratio</i> is to reverse the original decision. The effect of reversing a <i>ratio</i> is to abolish the original <i>ratio</i> and remove it from any further consideration in future similar cases. Therefore, reversing a <i>ratio</i> changes the common law by preventing a future court from standing by the original incorrect decision. It is as if the original decision never existed, e.g. <i>Wilson v Bauer Media Pty Ltd & Anor (2017 VSC521 and Bauer Media Aust Pty Leg v Rebel Melanie Elizabeth Wilson (No2) (2018) VSCA 154</i>.	

Question 6

(20 marks)

Read **Source 2** and answer **all** the question parts that follow.

The following is an edited extract entitled *NSW Liberals accuse Climate 200 and teal independent of misleading voters* written by Tamsim Rose and published by ABC News online on 24 March 2023.

The Liberal party has accused Climate 200 and the independent Manly candidate Joeline Hackman of misleading voters over election signs that tell voters they risked “wasting” their vote if they did not number every box.

The party launched an 11th-hour challenge in the NSW Electoral Commission against the signs that appeared this week in the northern Sydney seat of Manly, held by the environment minister, James Griffin.

Hackman’s similarly coloured sign asks voters if they “want better” and then repeats the same message.

The NSW Liberal party argued the reference to a “wasted vote” on the signs could mislead voters into thinking that just numbering one box, as is legal under the state’s optional preferential voting system, could be counted as an informal vote.

The Liberals have been campaigning across Manly and other northern Sydney seats being targeted by teal candidates with signs that remind voters they can “just vote one” on election day.

The party has also argued the Manly signs were not clearly enough marked as being authorised by Climate 200 and Hackman, and could confuse voters into thinking they were from the commission. But Hackman dismissed the claims as the “height of hypocrisy” and said she would mount a swift legal challenge if the commission ruled against them.

“The Liberals’ signs are intentionally designed to deceive voters by looking like official communications from the NSW Electoral Commission,” she said.

“There is no such confusion with our signs that are clearly in campaign colours and encourage voters to number every box on the small ballot paper to ensure they don’t risk wasting their vote.”

The Liberals said their own signs had been approved by the NSW Electoral Commission.

Hackman argued the state’s optional preferential voting system was “inherently undemocratic” – echoing the sentiment of fellow independent Jacqui Scruby, who this week vowed to make preferential voting compulsory if elected.

“It means candidates are routinely elected who don’t have the support of a majority of voters in that electorate,” Hackman said.

“We need to join the rest of the country and reinstitute mandatory preferential voting. If the NSWEC rules against our signs, we will consider prompt legal action to overturn that decision through the courts.”

Question 6

- (a) What is meant by an 'independent' in the Australian political system? (2 marks)

Description	Marks
Explains what is meant by an independent in the Australian political system.	2
Makes a general statement about what is meant by an independent in the Australian political system.	1
Total	2
An independent refers to: • An individual who is not aligned with a political party who is either running for, or has been elected to a seat within the parliament. • Such candidates have the ability to act as delegate or trustee representatives on behalf of their electorates. • For example, Kate Chaney is an independent candidate who was elected to represent the seat of Curtin in the 2022 Federal election.	
Accept other relevant answers.	

- (b) With reference to **Source 2** explain, in your own words, **two** opposing beliefs regarding the validity of optional preferential voting used by the electoral process in NSW.

(4 marks)

Description	Marks
Explains two opposing beliefs regarding the validity of optional preferential voting used by the electoral process in NSW. Explains each argument in the candidate's own words with direct reference to the source.	4
Describes two opposing beliefs regarding the validity of optional preferential voting used by the electoral process in NSW. Explains one argument and outlines the other argument. Answer is mostly in the candidate's own words with some reference to the source.	3
Identifies two opposing beliefs regarding the validity of optional preferential voting used by the electoral process in NSW. or Identifies and explains one belief regarding the validity of optional preferential voting used by the electoral process in NSW. Attempts to explain in the candidate's own words.	2
One or two pieces of evidence are cited verbatim from the source.	1
Total	4
Opposing beliefs regarding the validity of optional preferential voting could include: • Joeline Hackman and Climate 200 claim that the optional preferential voting system in NSW could lead to "vote wastage" as voters who only choose to preference their first preference will not have a say in choosing a candidate if their first preference is not elected. • Further, such a system is 'inherently undemocratic' as it can lead to individuals being elected to power that are not supported by the majority through vote splitting. • The Liberal Party in NSW are of the opinion that optional preferential voting is perfectly legitimate according to electoral law in NSW and as such the party were perfectly within their rights to remind voters that they could "just vote one" in the upcoming NSW election.	
Accept other relevant answers.	

Question 6 (continued)

- (c) Discuss the impact of the use of proportional voting in the upper house of the Commonwealth Parliament on representation.

(6 marks)

Description	Marks
Discusses the impact of the use of proportional voting in the upper house of parliament on representation at either the state or federal level. Makes reference to a specific example/issue/factor.	5 - 6
Outlines the impact of the use of proportional voting in the upper house of parliament on representation at either the state or federal level. Makes reference to an example/issue/factor.	3 - 4
Makes a general statement about the use of proportional voting in the upper house of parliament on representation at either the state or federal level.	1 - 2
Answers could include but not limited to: • Proportional voting aims to translate the proportion of votes a political party wins into the number of seats gained in the parliament. For example, if a party receives 10% of the vote in an election it would receive 10% of the seats in the chamber. This means that minor parties get seats in proportion to their electoral support. • Proportional voting has multi-member electorates. At the federal level for a general election there will be 6 senators/state and 2 senators/territory up for re-election. For half senate elections a candidate requires 14.3% for a quota whereas in a Double Dissolution election, the required quota is 7.7%. • Major parties generally speaking, can be guaranteed of winning 2 quotas, but to get the number of votes required for a 3rd quota is quite difficult, this is where minor parties may achieve a seat in the upper house due to preference deals and the allocation of preferences, often resulting in a 'lottery' effect for the final senate seat in each state. • Proportional systems tend to result in more diverse chambers with a greater variety of parties and independents being represented, thus better representing society's diversity. Because voters are more likely to vote for a political party, the candidates selected by those parties tend to be more diverse in sexual orientation, ethnicity, careers, etc. Currently there is 50% female, 4 LGBTQI, 4 Indigenous, plus a mix of ethnicities in the Senate. • Use of proportional voting makes it difficult for the government of the day to have a majority in the upper house and therefore further enhances this chamber in its review function. The last time a government had a majority in both houses was in 2004 with the Liberal government under the leadership of Prime Minister John Howard. Generally speaking this is not the best case scenario as the government can initiate and pass any legislation it desires with the Senate becoming a 'rubber stamp' for executive will.	

Question 6 (continued)

- (d) Evaluate the extent to which the structure of the Australian political system upholds the operating principles of a liberal democracy.

(8 marks)

Description	Marks
Evaluates the extent to which the structure of the Australian political system upholds the operating principles of a liberal democracy	7 - 8
Describes the extent to which the structure of the Australian political system upholds the operating principles of a liberal democracy	5 - 6
Outlines the extent to which the structure of the Australian political system upholds the operating principles of a liberal democracy	3 - 4
Makes a general statement regarding the extent to which the structure of the Australian political system upholds the operating principles of a liberal democracy	1 - 2
Total	8
Answers could include but not limited to: • Written Constitution = based on the USA • Head of State = Queen represented by Governor-General whose powers and responsibilities are outlined in the Constitution. ○ It could be argued that the existence of the monarch in the Australian HoR may contravene the liberal democratic principle of majority rule; however, the requirement for the Governor-General to act on the advice of the Federal Executive Council [EXCO] acts as a check on such power. • Head of Government = is the Prime Minister due to Westminster convention and so his powers are not outlined clearly. The lack of direct elections for the Head of Government could be seen to compromise the liberal democratic principle of equality of political rights. • Separation of powers: ○ Executive – Prime Minister [PM] selects ministers who must be Members of Parliament [MP] from either house, they are responsible to parliament directly and to the people of the nation, indirectly. Ministers head different portfolios/departments which cover the key areas of the Commonwealth government's authority. ○ Legislature – is fused with the executive: ▪ 151 MHRs (lower house) which is controlled by the govt – ie. the political party that won a majority of seats at the last election, form govt, their leader becomes the PM (Westminster convention of responsible govt) ▪ 76 Senators (upper house) which is the States' house & doubles as a House of Review to keep a check on the govt ▪ major function of the parliament is to pass legislation – generally introduced in the lower house by a member of the govt → 1st → 2nd → committee stage → 3rd reading → transition to other house for the same stages. Must transition both houses in identical format → sent to GG for Royal Assent → then proclaimed. ▪ The compromise electoral system which utilises preferential voting in the lower house and optional proportional voting in the upper house, results in the democratic election of the parliament which strongly upholds majority will, while also promoting minority representation in the Senate. It can be said that the legislation passed through parliament is largely representative of the majority will. The proportional system utilised in the upperhouse ensures a greater reflection of the diversity of the Australian population thus representing minority views and enabling equality of political rights. ▪ Acts of Parliament such as the <i>Electoral Act (1918)</i> and the many <i>amendments that have been made</i> to this original act, ensure the equality of political rights through the establishment of the independent statutory authority, the Australian Electoral Commission. This body protects basic political rights and freedoms such as the use of secret ballot and transparency of the electoral process. ○ Judiciary – is separate from the other two arms of government and independent of them. This ensures that the rule of law is upheld to a high degree and is not at the	

mercy of the government of the day. However, this liberal democratic principle may be undermined due to the fact the Governor-General appoints justices to the HCA on the advice of the Prime Minister, and the Parliament does have the ability to create new federal courts as it sees fit...as well as dissolving federal courts it deems no longer necessary. Eg. 2021 the merging of the Family Court with the Federal Circuit Court by Attorney-General Christian Porter.

- Political freedoms such as freedom of political speech and communication have been protected through common law cases such as *ACTV Pty Ltd v Commonwealth* (1992) HCA 45.
- Federal system – there are two levels of government identified in the Commonwealth Constitution i.e. the national level (Commonwealth) and the six States and two Territories. Each level have their own powers and responsibilities as outlined/enumerated in the Constitution.
 - Division of powers:
 - Exclusive – belong to the C/w level eg: s115 coin money; s51vi defence
 - Concurrent – shared between the C/w and states but if they make legislation on the same area and it is in conflict, then the C/w law will override that of the state (s109). These powers are listed in s51 – the 'heads of power' section
 - Residual – these powers reside with the states and are not listed in the Constitution.

Evaluation:

Students describe the key structures of Australia's political and legal system and explore how these structures uphold the principles of a liberal democracy.

Students draw out and relate the implications of this for citizens of Australia.

Section Three: Essay**50% (50 Marks)****Marking guide to essay answers****Questions 7 – 10**

Description	Marks
Explains relevant terms and outlines parameters of discussion	
Explains all relevant terms and outlines parameters of discussion	5
Explains some of the terms and outlines parameters of discussion	4
Indicates what will be addressed in the discussion	3
Attempts to provide a focus for discussion	2
Makes a general statement concerning the topic / claim	1
Subtotal	5
Discussion of relevant issues including pertinent examples	
Discusses comprehensively relevant issues using a well-structured format & supportive examples in a cohesive, logical sequence and using relevant political and legal terminology	9-10
Discusses some relevant issues incorporating some examples in a cohesive, logical sequence and using relevant political and legal terminology	7-8
Limited discussion with limited examples in a logical sequence & some relevant political & legal terminology	5-6
Limited discussion of the issues with limited political and legal terminology	3-4
Makes a general statement concerning the topic	1-2
Subtotal	10
Evaluation / Assessment / Analysis	
Evaluates/Assesses/Analyses the claim using specific evidence which demonstrates a comprehensive understanding of the topic	7
Evaluates/Assesses/Analyses the claim using appropriate evidence which demonstrates an understanding of the topic	6
Evaluates/Assesses/Analyses the claim using some evidence which demonstrates some understanding of the topic	5
Constructs a relevant but weak evaluation / assessment / analysis	4
Constructs a weak evaluation / assessment / analysis	3
Limited evaluation / assessment / analysis	2
No relevant evaluation / assessment / analysis A statement only	1
Subtotal	7
Conclusion	
Draws together the argument linking evidence	3
Summarises the argument	2
Makes general / superficial statements	1
Subtotal	3
TOTAL	25

Question 7**(25 marks)**

Evaluate the extent to which separation of powers exists in the political and legal systems of Australia and China.

Relevant terms and parameters of discussion

- Separation of Powers
- Australia's three branches of Government
- China's autocracy

Issues including pertinent examples could include:**Australia:**

- Demonstrates a clear understanding of the concept of separation of powers.
- Explains how the legislative, executive, and judicial branches operate independently.
- Discusses the historical development of the separation of powers in Australia.
- Provides a thorough analysis of the role and functions of the Australian Parliament.
- Discusses how legislative power is separated from executive and judicial powers.
- Examines any challenges or issues related to the separation of legislative power i.e. section 64; abrogation of common law.
- Analyses the functions and powers of the executive branch, including the role of the Prime Minister and the Cabinet.
- Discusses mechanisms in place to ensure the independence of the executive from the legislative and judicial branches.
- Examines the role and functions of the judiciary, including the High Court of Australia.
- Discusses the independence of the judiciary and its role in interpreting and applying the law.

China:

- Party-State Structure - the role of the Chinese Communist Party (CCP) in the political system.
- Discusses how the party-state structure influences the separation of powers.
- Examines the relationship between the legislative, executive, and judicial branches and the CCP.
- Legislative: Provides a thorough analysis of the functions and powers of the National People's Congress (NPC). Discusses mechanisms in place to ensure or challenge the independence of the legislative branch.
- Executive: Analyzes the functions and powers of the executive branch, including the role of the President and Premier. Discusses how the executive branch interacts with the legislative and judicial branches. Examines the role of the State Council in policymaking.
- Judicial: Examines the role and functions of the judiciary in China. Discusses the independence of the judiciary and its ability to check the powers of the other branches.

Evaluation/assessment/analysis

For full marks students must establish a clear evaluation of the extent to which separation of powers exists in the political and legal systems of Australia and China. This is **not** a comparison essay.

Question 8**(25 marks)**

'Whilst there are a number of ways in which a bill can be carefully scrutinised within the Commonwealth Parliament, ultimately the process is flawed'.

Assess this claim with reference to the strengths and weaknesses within the legislative process.

Relevant terms and parameters of discussion

- Role of the legislature:
 - To pass, amend and repeal laws
- Appropriation bills:
 - Money spent by the executive government. These types of bills can only be initiated or amended in the House of Representatives (s.53; s.54)

Issues including pertinent examples could include:

- Ways which provide for careful scrutiny of a bill (strengths):
 - Carefully drafted
 - Notice of bill
 - Every MP receives a copy
 - Federation Chamber provides efficiency
 - Open government
 - Reading of the bill aloud and in full
 - Debate
 - Committee stage – outside consultation; expert advice
 - Majority vote required to pass
 - A bill must be passed by both houses
 - House – represents the will of the people/majority
 - Senate – represents minorities
 - Senate: powerful chamber; check on gov. power; absence of executive dominance; stronger debate function
 - A bill must receive broad support / bi-partisan support
 - Governor-General acts as a final check
 - May return bill with recommendations
- Ways which greatly reduce the careful scrutiny of a bill (weaknesses):
 - Executive dominance in the House
 - Sets the agenda – therefore most bills are gov. bills
 - Government controls debate function – and may use tactics to force through debate (gags; guillotines; flood-gating)
 - Gov never loses a vote on the floor of the House (exemption: Medevac)
 - Powerful Senate crossbench – may reduce legitimacy of gov maj mandate
 - Case example: Lambie
 - Senate – malapportionment rejects the principle of 'one vote, one value'
 - One senator's vote can be worth more than another senator's vote
 - Horse-trading
 - Due to 'on voice narrative' – unable to hold individual ministers responsible for bill

Evaluation/assessment/analysis

For full marks students must establish a clear argument outlining the ways in which a bill can be carefully scrutinized within the AUS parliament – and, in contrast, the ways which reduce/minimise scrutiny.

Question 9**(25 marks)**

'The US Presidential election is not a democratic vote'.

Evaluate this claim with reference to the stages of the US Presidential electoral process.

Relevant terms and parameters of discussion

- Democracy
- Presidential electoral process
- Primary & Caucus
- National Conventions
- Campaigns
- General Election
- Electoral College
- Inauguration

Issues including pertinent examples could include:

- Primaries
 - First official stage
 - Purpose
 - Timing: Primaries and caucuses are staggered, generally beginning sometime January or February, and ending about mid-June before the General Election in November.
 - Some states hold only primary elections, some hold only caucuses, and others use a combination of both.
 - These State and local governments run the primary elections, while caucuses are private events that are directly run by the political parties themselves. A state's primary election or caucus is usually an indirect election: instead of voters directly selecting a particular person running for president, they determine the number of delegates each party's national convention will receive from their respective state.
 - Each party determines how many delegates it allocates to each state. Along with those "pledged" delegates chosen during the primaries and caucuses, state delegations to both the Democratic and Republican conventions also include "unpledged" delegates who have a vote. For Republicans, they consist of the three top party officials who serve *At Large* from each state and territory. Democrats have a more expansive group of unpledged delegates called "superdelegates", who are party leaders and elected officials
 - 13 states hold caucuses
 - Strengths and weaknesses as to whether democratic
 - Super Tuesday
 - Super Tuesday is the US presidential primary election day in February or March when the greatest number of U.S. states hold primary elections and caucuses. Approximately one-third of all delegates to the presidential nominating conventions can be won on Super Tuesday, more than on any other day. The results on Super Tuesday are therefore a strong indicator of the likely eventual nominee of each political party.
- National Convention
 - Timing
 - Purpose: Theory v practice
 - Strengths and weaknesses as to whether democratic
- General Election
 - Campaigning

- Targeting swing states and states with high EC votes – at a detriment to small EC vote states
 - Election day
 - Timing
 - Not a direct vote/popular vote like other democracies – explain why
- Electoral College
 - Purpose
 - The Electoral College provided a compromise between two main proposals: the popular election of the President and the election of the President by Congress.
 - 270/538 – explain composition
 - Safeguard in case of a tie
 - Academic criticism - Strengths and weaknesses as to whether democratic
 - The appropriateness of the Electoral College system is a matter of ongoing debate. Supporters argue that it requires presidential candidates to have broad appeal across the country in order to win, while critics argue that it is not representative of the popular will of the nation when viewed without regard to the states.
 - Its implementation by the states may leave it open to criticism; winner-take-all systems, especially in populous states, may not align with the principle of "one person, one vote". Almost 10% of presidential elections under the system have not elected the winners of the nationwide popular vote.
 - Critics argue that the Electoral College system is less democratic than a direct popular vote and that the College violates the democratic principle of "one person, one vote." Thus, a president may be elected who did not win the national popular vote, as occurred in 2016.
 - Critics object to the inequity that due to the distribution of electors, individual citizens in states with smaller populations have proportionately more voting power than those in larger states. This is because the number of electors each state appoints is equal to the size of its congressional delegation, each state is entitled to at least three regardless of population, and the apportionment of the statutorily fixed number of the rest is only roughly proportional. In addition, faithless electors may not vote in accord with their pledge.
 - Further objection is that instead of spending equally on each voter in the nation, candidates focus their campaigns on just a few swing states.

Evaluation/assessment/analysis

For full marks students must establish a clear argument analysing if the US Presidential election is not a democratic vote

Evaluate the extent to which political parties, individuals and/or pressure groups can influence the lawmaking process of Commonwealth Parliament.

Relevant terms and parameters of discussion

- Pressure groups: A group of likeminded individuals who seek to influence law but do not seek to directly gain seats in parliament. There are two main categories which include sectional and promotional.
- Major political parties: Aimed at forming government
- Minor political parties: Association formed to influence the law making process. These groups generally have a narrow focus and a smaller support base. They aim to gain seats to influence legislation that will promote their cause. For example, the Greens.
- Micro political parties: hold balance of power in Senate
- Individuals: A person who acts of their own accord and undertake action themselves. They may seek to influence law making by becoming a member of parliament. These individuals may join a political party and present legislation as a private member or may run as an independent.

Issues including pertinent examples could include:

- Pressure groups have quite narrow causes and they aim to advance their specific cause. They may do this by affecting the outcome of the membership of parliament, by supporting or opposing political parties or by lobbying. They may target a major party and attempt to unseat the member or back an independent or minor party in a marginal seat.
- Minor political parties are similar to pressure groups in that their cause is narrower than major parties although they can have more influence by directly gaining seats in parliament or even forming a coalition with a major political party. These parties have a greater chance at electoral success in the Senate due to proportional representation.
- Individuals act of their own volition and have a very narrow cause generally being some specific issue or for their electorate. There have been a few successful individuals in both the HoR and the Senate who gained representation through their personal platform and relationship with their electorate.
- The increased role by pressure groups, minor political parties and individuals in gaining representation within the electoral process. This has resulted from a hung parliament (2010), a double dissolution election (2016) and an improved young vote (as enrolment increased for the same sex marriage survey in 2017).

Pressure groups:

- GetUp! united with the Warringah Action Group to bring attention to Tony Abbott's failures for his electorate of Warringah and lack of support for climate change. He had held the seat for 25 years since 1994. Their slogan 'Turf out Tony: How we will win Warringah' was used to undermine Tony. He was not re-elected and independent Zali Steggal gained the seat.
- Getup spent \$300,000 on a targeted campaign to unseat Andrew Nikolic from the seat of Bass (he was a Liberal MP). They focused on the specifics and 'facts' in regards to cuts to health, education and renewable energy sectors that were supported by Andrew Nikolic.
- An unsuccessful attempt by Getup was targeted at Peter Dutton for the seat of Dickson in 2019. Although they spent \$225,000, campaigning by door knocking phone calling, surveying and promoting his 'failures' with the slogan 'Ditch Dutton'. They focused on his role in Australia's immigration policy. They failed to influence and he maintained his seat and increased his margin by 2.9%.
- Voices for Indi supported and launched Cathy McGowan into the electorate of Indi through a targeted campaign against Sophie Mirabella who had prioritized her political party over her electorate.

Minor parties:

- Palmer United Party (PUP)- Launched a very expensive campaign for the 2013 election promising Australians that he was representing their interests and would create a 'revolution' and get Australian's their money back. He also said he would create more jobs and growth. Clive Palmer gained a seat in the House of Representatives for Fairfax and 3 seats in the Senate (Jacquie Lambie, Glen Lazarus and Dio Wang- 2014 recount).
- United Australia Party- PUP was renamed UAP and relaunched leading to the 2019 election. Palmer spent \$60 million on his campaign but did not gain any seats. This is an example of a failed attempt to achieve electoral influence.
- Nick Xenophon Team (NXT)- Nick Xenophon was the leader of this party which represented South Australian interests in the Senate. In 2016 the party gained 3 seats in the Senate and 1 in the House of Representatives. Rebekah Sharkie gained representation in the seat of Mayo for the HoR after a campaign aided by Getup which unseated Liberal Minister Jamie Briggs in 2016. This party is now Centre Alliance (as Nick Xenophon resigned when he believed he was a dual citizen) and in the 2019 election gained 1 seat in the HoR and 2 in the Senate.
- The Greens: Adam Bandt in the seat of Melbourne for the HOR. He won the seat in the House of Representatives in 2010 as a popular local personality and journalist and has maintained it ever since (although preferences normally hinder minor parties in the HoR).
- One Nation- Pauline Hanson with One Nation achieved 2 seats in 2016 in the Senate and 2 seats in 2019 by appealing to Australia's by saying she would put Australia's interests first by restricting immigration and keeping jobs in Australia for Australians.
- Other minor parties include Family First, Liberal Democrats David Leyonhjelm, Australian Conservatives- Cory Bernardi and the Jacqui Lambie Network.

Individuals:

- Kerryn Phelps- gaining representation through a bi-election in Wentworth in 2018 after Malcolm Turnbull resigned from the seat after being challenge for leadership by Peter Dutton and losing the position of Prime Minister. This safe Liberal seat (19% margin) swung away from the Liberal party to independent Kerryn Phelps who was high profile and self-funded. She was well known as she had been a GP for the electorate for the previous 2 decades. She was able to appeal to the electorates frustration with the Governments policy and lack of action on LGBTQI issue, climate change and refugees. Following into the 2019 election Phelps was unable to maintain the seat which was re-won by the Liberal party
- Cathy McGowan in Indi for the 2013 election. She unseated Sophie Mirabella.
- Zali Steggall in Warringah who won the vote in a 'blue' seat after Malcolm Turnbull resigned from parliament in 2018.

Evaluation/assessment/analysis

For full marks students must establish a clear argument analysing if political parties, individuals and/or pressure groups can influence the lawmaking process of Commonwealth Parliament